

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

|                                                         |   |                       |
|---------------------------------------------------------|---|-----------------------|
| -----X                                                  |   |                       |
| Djibril Sow and Mohammed Kamara,                        | : | Index Number:         |
|                                                         | : | Date Purchased:       |
| Plaintiffs,                                             | : | Date Filed:           |
|                                                         | : |                       |
| -against-                                               | : | SUMMONS               |
|                                                         | : |                       |
| City of New York, New York City Police Department,      | : |                       |
| Police Officer Thomas Accomando, Shield 08316 of the    | : |                       |
| 46 Precinct and New York City Police Officers John Doe, | : |                       |
|                                                         | : | Plaintiff Sow's       |
|                                                         | : | residence is:         |
|                                                         | : | 2000 Valentine Avenue |
|                                                         | : | Bronx, NY 10457       |
| Defendants                                              | : |                       |
| -----X                                                  |   |                       |

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: September 29, 2022,  
New York, NY

Yours, etc.,

*Jason Steinberger*

LAW OFFICES OF JASON A. STEINBERGER, LLC  
Attorney for Plaintiffs  
505 Eighth Avenue  
Suite 701  
New York, NY 10018  
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Thomas Accomando, Shield 08316 of the 46 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
Djibril Sow and Mohammed Kamara, :

Plaintiffs, :

: VERIFIED COMPLAINT  
-against- :

City of New York, New York City Police Department, :  
Police Officer Thomas Accomando, Shield 08316 of the :  
46 Precinct and New York City Police Officers John Doe, :

:  
Defendants. :  
-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,  
alleges upon information and belief as follows:

**STATEMENT OF FACTS**

1. That at all times hereinafter mentioned, Plaintiff Djibril Sow, (hereinafter referred to as “SOW”) resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Mohammed Kamara, (hereinafter referred to as “KAMARA”) resides in Bronx County, State of New York.
3. That at all times hereinafter mentioned, Police Officer Thomas Accomando, Shield 08316 of the 46 precinct (hereinafter referred to as “ACCOMANDO”) was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the officers involved in the arrest of Plaintiffs, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

7. On or about November 15, 2021 notice required by Municipal Law 50-E was given to City of New York, by personal service as to all Plaintiffs. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

8. On or about December 9, 2022 a hearing required by Municipal Law 50-H was conducted for Plaintiffs. At said hearing all Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

9. That on or about November 9, 2021 at approximately 10:00 PM in the vicinity of Burnside Avenue and Echo Place, Bronx NY, Plaintiffs were on their way to KAMARA's home, having visited a local grocery store when they were stopped, handcuffed and arrested by ACCOMANDO and DOES.

10. That at no time had Plaintiffs engaged any unlawful or illegal activity.

11. That at no time did any Plaintiff possess or exercise custody and control over a gun.

12. That despite the above, ACCOMANDO and DOES handcuffed and arrested Plaintiffs.

13. That after Plaintiffs were arrested they were each taken to the 46 precinct.

14. That while at the 46 precinct, each of the Plaintiffs were subjected to a search and that nothing of an illegal or unlawful nature was recovered.
15. That while at the 46, Plaintiffs were placed into a cell with numerous other males.
16. That after being held at the 46 precinct for several hours, Plaintiffs were each transported to Central Booking, located at 215 East 161 Street, Bronx NY.
17. That while inside of Central Booking, Plaintiffs were forced to remain inside of a holding cell with numerous other people.
18. That after spending numerous hours in Central Booking, Plaintiffs were each released after the Office of the Bronx County District Attorney declined to prosecute each of the Plaintiffs arrests.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS**

19. Plaintiff SOW repeats, reiterates and realleges the allegations contained in paragraphs 1 through 18 as if more fully stated herein at length.
20. That Defendants acted with actual malice toward Plaintiff SOW and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
21. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.
22. That as a result of the actions by Defendants, Plaintiff SOW was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.
23. That as a result of the Defendants' actions, Plaintiff SOW has been unable to sleep.

24. That as a result of the Defendants actions, Plaintiff SOW was forced to miss multiple days of work.

25. That as a result of the Defendants' actions Plaintiff SOW sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS**

26. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 25, as if more fully stated herein at length.

27. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff SOW as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

28. Defendants having no lawful authority to arrest Plaintiff SOW, did, nevertheless, unlawfully arrest Plaintiff SOW with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus, Plaintiff SOW is entitled to both compensatory and exemplary damages.

**AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS**

29. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 28 as if more fully stated herein at length.

30. Defendants conspired to violate Plaintiff VASQUEZ's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State

Constitution, for which Defendants are individually liable. Thus Plaintiff SOW is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS**

31. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.

32. Plaintiff SOW was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff SOW to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff SOW by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff K. DIALLO. Plaintiff SOW is thus entitled to compensatory and exemplary damages.

33. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff SOW by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT**

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. At all times pertinent hereto, ACCOMANDO and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

36. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that ACCOMANDO and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT**

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff SOW. Plaintiff SOW is thus entitled to compensatory exemplary damages.

39. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of nineteen (19) Civilian Complaint Review Board complaints, two (2) of which were substantiated and yet, they continued to employ ACCOMANDO.

40. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, *Oceiffe Heslop v. City of New York, et al.*, index number 813183/2021E in Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

41. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, *Lashonda Coates-Samuels v. City of New York, et al.*, index 033894/2020, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.



42. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Dwayne Smith v. City of New York, et al., index 033605/2020E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

43. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Javier Mesa v. City of New York, et al., index 025343/2020E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

44. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Jonathan Alvarado v. City of New York, et al., index 026660/2019E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

45. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Markey Linen v. City of New York, et al., index 026290/2019E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

46. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Louis Rivera v. City of New York, et al., index 031181/2018E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

47. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Louis Rivera v. City of New York, et

al., index 031180/2018E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

48. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Travis Yancey v. City of New York, et al., index 031181/2018E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS**

49. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48, as if more fully stated herein at length.

50. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff SOW.

51. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff SOW.

**AS AND FOR AN EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS**

52. Plaintiff KAMARA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51 as if more fully stated herein at length.

53. That Defendants acted with actual malice toward Plaintiff KAMARA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff KAMARA.

54. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

55. That as a result of the actions by Defendants, Plaintiff KAMARA was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

56. That as a result of the Defendants' actions, Plaintiff KAMARA has been unable to sleep.

57. That as a result of the Defendants' actions, Plaintiff KAMARA was forced to miss multiple days of work.

58. That as a result of the Defendants' actions Plaintiff KAMARA sustained damage to his persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

#### **AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS**

59. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 58, as if more fully stated herein at length.

60. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff KAMARA as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

61. Defendants having no lawful authority to arrest Plaintiff KAMARA, did, nevertheless, unlawfully arrest Plaintiff KAMARA with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff KAMARA is entitled to both compensatory and exemplary damages.

**AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST DEFENDANTS**

62. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 61, as if more fully stated herein at length.

63. Defendants conspired to violate Plaintiff KAMARA's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus, Plaintiff KAMARA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION AS DEFENDANTS**

64. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 63, as if more fully stated herein at length.

65. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff KAMARA to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution of Plaintiff KAMARA by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff KAMARA. Plaintiff KAMARA is thus entitled to compensatory and exemplary damages.

66. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff KAMARA by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT**

67. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 66, as if more fully stated herein at length.

68. At all times pertinent hereto, ACCOMANDO and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

69. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that ACCOMANDO and DOES committed within the scope of his employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW  
YORK AND NEW YORK CITY POLICE DEPARTMENT**

70. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 69, as if more fully stated herein at length.

71. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff KAMARA. Plaintiff KAMARA is thus entitled to compensatory exemplary damages.

72. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of nineteen (19) Civilian Complaint Review Board complaints, two (2) of which were substantiated and yet, they continued to employ ACCOMANDO.

73. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Oceiffe Heslop v. City of New York, et al., index number 813183/2021E in Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

74. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Lashonda Coates-Samuels v. City of New York, et al., index 033894/2020, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

75. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Dwayne Smith v. City of New York, et al., index 033605/2020E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

76. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Javier Mesa v. City of New York, et al., index 025343/2020E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

77. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Jonathan Alvarado v. City of New York, et al., index 026660/2019E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

78. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Markey Linen v. City of New York, et al., index 026290/2019E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

79. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Louis Rivera v. City of New York, et al., index 031181/2018E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

80. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Louis Rivera v. City of New York, et al., index 031180/2018E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

81. That the City of New York and New York City Police Department were aware that ACCOMANDO was the subject of a civil rights lawsuit, Travis Yancey v. City of New York, et al., index 031181/2018E, Bronx County Civil Supreme Court and yet they continued to employ ACCOMANDO.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS**

82. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 81, as if more fully stated herein at length.

83. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff KAMARA.

84. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff KAMARA.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

**On the first cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the second cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

**On the third cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

**On the fourth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;



**On the fifth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the sixth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the seventh cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

**On the eighth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the ninth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

**On the tenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

**On the eleventh cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

**On the twelfth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the thirteenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the fourteenth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

*Jason Steinberger*  
Jason A. Steinberger, Esq.  
Attorney for Plaintiffs  
505 Eighth Avenue  
Suite 701  
New York, NY 10018  
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the Plaintiff is because the Plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the Plaintiff, review of records and documents within affirmant's possession.

Affirmed: September 29, 2022

*Jason Steinberger*  
Jason A. Steinberger